

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

Index No.:**PAOLA MENDOZA****Date Purchased:**

Plaintiff,

Date Filed:

– against –

SUMMONS**CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, DETECTIVE ALEXANDER SOSA,
POLICE OFFICER JOHN DOE and POLICE OFFICER
JOHN ROE**Plaintiff designates New York County as
the place of trial. The basis of venue is
the action arose in New York County.

Defendant(s).**TO THE ABOVE NAMED DEFENDANTS:**

YOU ARE HEREBY SUMMONED to answer the Verified Complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after the service of the summons, exclusive of the day of service or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within Verified Complaint.

Date: New York, New York
May 24, 2013**NEIL WOLLERSTEIN, ESQ.**Attorney for Plaintiff
59 Maiden Lane, 17th Floor
New York, NY 10038
(212) 412-4705
File No.: NW- 471

TO: MICHAEL A. CARDOZO, ESQ.
Corporation Counsel of City Of New York
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, NY 10038

DETECTIVE ALEXANDER SOSA (Shield No. 2549)
New York City Police Department
1 Police Plaza
New York, NY 10038

POLICE OFFICER JOHN DOE
New York City Police Department
1 Police Plaza
New York, NY 10038

POLICE OFFICER JOHN ROE
New York City Police Department
1 Police Plaza
New York, NY 10038

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

PAOLA MENDOZA

INDEX NO.:

Plaintiff,

– against –

**CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, DETECTIVE ALEXANDER SOSA,
POLICE OFFICER JOHN DOE and POLICE OFFICER
JOHN ROE**

VERIFIED COMPLAINT

Defendant(s).

Plaintiff, by her attorney, **NEIL WOLLERSTEIN, ESQ.**, complaining of the defendants, respectfully shows to this Court and alleges the following upon information and belief:

1. That at all times the Plaintiff **PAOLA MENDOZA** was and is a resident of New York County, State of New York.
2. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, hereinafter referred to as “CITY”, was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned the defendant, NEW YORK CITY POLICE DEPARTMENT, hereinafter referred to as “NYPD”, was and is an agency of the defendant, CITY.
4. That on and prior to 10/17/12 and at all times hereinafter mentioned the defendant, DETECTIVE ALEXANDER SOSA (Shield No. 2549), hereinafter referred to as “SOSA” was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.
5. That on and prior to 10/17/12 and at all times hereinafter mentioned the defendant, POLICE OFFICER JOHN DOE, hereinafter referred to as “DOE” was and is a police officer

employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

6. That on and prior to 10/17/12 and at all times hereinafter mentioned the defendant, POLICE OFFICER JOHN ROE, hereinafter referred to as "ROE" was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

7. Upon information and belief, at all times hereinafter mentioned, and on 10/17/12, at approximately 1:25 p.m., several police officers including but not limited to SOSA, DOE and ROE were on duty and in the vicinity of 880 St. Nicholas Avenue, County of New York, City and State of New York.

8. Upon information and belief, at all times hereinafter mentioned, and on 10/17/12, at approximately 1:25 p.m., the above mentioned Police Officers were acting within the scope of their employment and under the direction of the CITY and NYPD as its agents, servants and/or employees.

9. Upon information and belief, defendants SOSA, DOE and ROE were all assigned to the Narcotic Borough Manhattan North.

10. That on and prior to 10/17/12 SOSA, DOE and ROE were each individually hired, screened, tested, interviewed, trained, retrained, investigated, monitored and supervised by the CITY and NYPD.

11. That on and prior to 10/17/12, at approximately 1:25 p.m., and all relevant times herein after, SOSA, DOE and ROE individually and/or collectively were acting pursuant to and under the rules and regulations of the New York City Patrol Guidelines.

12. That on 10/17/12, at approximately, 1:25 p.m., Plaintiff **PAOLA MENDOZA** was

lawfully in the vicinity of 880 St. Nicholas Avenue, County of New York, State of New York and doing nothing illegal, improper or acting suspicious in anyway.

13. That on 10/17/12, at approximately, 1:25 p.m., in the vicinity of 880 St. Nicholas Avenue, County of New York, State of New York, SOSA, DOE and ROE, absent an arrest warrant, probable cause, reasonable cause or any legal justification, approached Plaintiff **PAOLA MENDOZA** for no reason and summarily stopped, searched, grabbed, assaulted, battered, and detained her in an aggressive and excessive manner.

14. Upon information and belief SOSA, DOE and ROE knew or had reason to know that their actions lacked any legal justification in approaching, searching, seizing and arresting Plaintiff **PAOLA MENDOZA**.

15. Upon information and belief, Plaintiff **PAOLA MENDOZA** was subjected to a strip search and denied medical attention while in the custody of defendants without any legal reason or justification.

16. That Plaintiff **PAOLA MENDOZA** was arraigned after her arrest and thereafter falsely and maliciously prosecuted with committing the crime of Possession of Controlled Substance in the Third Degree and other related offenses.

17. Thereafter, Plaintiff **PAOLA MENDOZA** remained incarcerated for over 24 hours and was required to make numerous court appearances over an extended period of time until all charges against her were summarily dismissed by the District Attorney's Office on 12/18/12.

18. Plaintiff **PAOLA MENDOZA** sustained physical and emotional pain and injuries as a result of this incident.

19. That within ninety (90) days after the causes of actions accrued herein, and more than thirty (30) days prior to the commencement of this action, the Plaintiff **PAOLA MENDOZA** caused

the notice of claim, in writing, sworn to by and on behalf of the claimants, the Plaintiff herein, containing the statement of the name and place of residence of the claimants by the street and number and their attorney, and describing the time when the particular claim and circumstances under which the damages and injuries were sustained, the cause thereof, and so far as practical, the nature and extent of the injuries to be personally served upon the defendant CITY, their agents, servants and/or employees at the Law Department,

20. This action was so commenced within one (1) year and ninety (90) days after said cause of action accrued herein, and for more than thirty (30) days prior to the commencement of this action, defendant CITY neglected, refused and failed to make an adjustment of said claim, and said claim remains unadjusted and unpaid, although plaintiff herein has requested and demanded that the same be paid and adjusted.

21. That the defendants requested an oral examination pursuant to General Municipal Law Section 50-H and said request was complied with.

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
PLAINTIFF PAOLA MENDOZA

22. Plaintiff **PAOLA MENDOZA** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 21 with the same force and effect as if fully set forth at length herein.

23. That on or about 10/17/12, at approximately 1:25 p.m., the Plaintiff **PAOLA MENDOZA** was without just cause, probable cause or provocation, and with reckless, negligent and callous disregard for the truth, and without investigation, touched, grabbed, handcuffed, seized and arrested in an excessive manner and with excessive force by CITY, NYPD, SOSA, DOE and ROE, their agents, servants and/or employees, and in particular, by SOSA, DOE and ROE.

24. That on or about 10/17/12, at approximately 1:25 p.m., the Plaintiff **PAOLA MENDOZA** while lawfully in the vicinity of 880 St. Nicholas Avenue, County of New York, City and State of New York, was without just cause, probable cause or provocation, maliciously, intentionally and falsely accused by CITY, NYPD, SOSA, DOE and ROE of having committed the crime of Possession of Controlled Substance in the Third Degree.

25. That on or about 10/17/12, and upon arresting the Plaintiff **PAOLA MENDOZA** and depriving her of her liberty, CITY, NYPD, SOSA, DOE and ROE took the Plaintiff **PAOLA MENDOZA** to a police station in the County of New York and entered her on the records as under arrest.

26. That on or about 10/17/12, the CITY, NYPD, SOSA, DOE and ROE further caused Plaintiff **PAOLA MENDOZA** to have her fingerprints and photographs to be taken without her consent and in accordance with police procedures for the arrest of criminals and held her on various criminal charges at various police stations, correctional facilities and at the Courthouse located at 100 Centre Street, County of New York, City and State of New York.

27. That on or about 10/17/12 Plaintiff **PAOLA MENDOZA** was aware of her arrest and confinement, she did not consent to her arrest or confinement, and said confinement, seizure, arrest and detention was without legal justification.

28. That at all times hereinafter mentioned the actions of CITY, NYPD, SOSA, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

29. That by reason of the foregoing, Plaintiff **PAOLA MENDOZA** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF

PLAINTIFF PAOLA MENDOZA

30. Plaintiff **PAOLA MENDOZA** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 29 with the same force and effect as if fully set forth at length herein.

31. That on or about 10/17/12, a criminal complaint was issued by the CITY, NYPD, SOSA, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

32. That on or about 10/17/12 a criminal action against Plaintiff **PAOLA MENDOZA** was commenced by CITY, NYPD, SOSA, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

33. That solely as a result of the aforesaid, the Plaintiff **PAOLA MENDOZA'S** life was interfered with.

34. That the criminal action against Plaintiff **PAOLA MENDOZA** was continued for an extended period of time by defendants with malice and bad faith.

35. That solely as a result of the false arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff **PAOLA MENDOZA**, she was deprived of her liberty for an extended period of time and was subjected to scorn, ridicule, embarrassment and was degraded in the esteem of the community both personally and professionally.

36. That on or about 12/18/12 the criminal action against Plaintiff **PAOLA MENDOZA** was terminated favorably by dismissal.

37. That the actions of CITY, NYPD, SOSA, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

38. That by reason of the foregoing, Plaintiff **PAOLA MENDOZA** has been damaged in

an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF
PLAINTIFF PAOLA MENDOZA

39. Plaintiff **PAOLA MENDOZA** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 38 with the same force and effect as if fully set forth at length herein.

40. That on or about 10/17/12, and while in the custody of the defendants in the County of New York, City of New York, the Plaintiff **PAOLA MENDOZA** was intentionally touched, pushed, assaulted, battered, violated, strip searched, humiliated, photographed and handcuffed by the CITY, NYPD, SOSA, DOE and ROE, who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

41. That on or about 10/17/12 CITY, NYPD, SOSA, DOE and ROE, their agents, servants and employees, acting as agents and on behalf of the CITY, NYPD, SOSA, DOE and ROE, within the scope of their employment, did intentionally, willfully and maliciously assault and batter the Plaintiff **PAOLA MENDOZA** in that they have the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff **PAOLA MENDOZA** and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner touched and beat the plaintiff and/or offensive bodily contact to the Plaintiff **PAOLA MENDOZA** and caused such battery in and about her head, neck, back, body and limbs.

42. That by reason of the aforesaid intentional assault and battery which was committed in an excessive manner and with excessive force and without legal justification or privilege by the

defendants, their agents, servants and employees, who were acting within the scope of their employment and authority and without any probable or reasonable cause, Plaintiff **PAOLA MENDOZA** suffered great and permanent bodily injury in and about her head, neck, back, body and limbs and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that she was otherwise damaged.

43. That as a result of the aforesaid assault and battery the Plaintiff **PAOLA MENDOZA** was caused to sustain serious, severe, painful and permanent bodily injuries so that she was rendered sick, sore, lame and disabled and so remains and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure herself of his said injuries and she was and will be prevented from attending her usual occupation and duties.

44. That at all times hereinafter mentioned the actions of CITY, NYPD, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

45. That by reason of the foregoing, Plaintiff **PAOLA MENDOZA** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF PAOLA MENDOZA

46. Plaintiff **PAOLA MENDOZA** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 45 with the same force and effect as if fully set forth at length herein.

47. That the CITY, NYPD, their agents, servants and employees were negligent, careless and reckless in hiring, retaining, training, monitoring, retraining, supervising and promoting its employees including but not limited to SOSA, DOE and ROE, in that said police officers, as

employees of CITY and NYPD, were not qualified to be hired or retained or promoted as police officers, lacked the experience, skill, training and ability to be employed, retained and utilized in the manner that each was employed by CITY and NYPD.

48. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately test, analyze test results, and/or investigate above mentioned police officers backgrounds and performances.

49. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately screen said police officers, failed to adequately monitor said police officers, and failed to adequately discipline said police officers when they violate Patrol Guidelines.

50. Defendant CITY and NYPD were also negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the police officer defendants named herein, knew or should have known of the bad disposition of said defendants, or at the very least had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that defendant police officers were not suitable to be hired and employed by the CITY and NYPD and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

51. That by reason of the above, the Plaintiff **PAOLA MENDOZA** was injured in mind and body as he was arrested, prosecuted and rendered sick, sore, and damaged.

52. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and

grossly negligent manner.

53. That by reason of the foregoing, Plaintiff **PAOLA MENDOZA** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF PAOLA MENDOZA

54. Plaintiff **PAOLA MENDOZA** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-53 with the same force and effect as if fully set forth at length herein.

55. In arresting Plaintiff **PAOLA MENDOZA**, police officers including but not limited to SOSA, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

56. In arresting Plaintiff **PAOLA MENDOZA**, police officers including but not limited to SOSA, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, sought either a detriment to Plaintiff **PAOLA MENDOZA** or a collateral advantage to the CITY and NYPD that is outside the legitimate ends of effectuating an arrest.

57. As a result of the abuse of process by defendants herein, Plaintiff **PAOLA MENDOZA** sustained multiple injuries including but not limited to loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for her safety.

58. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

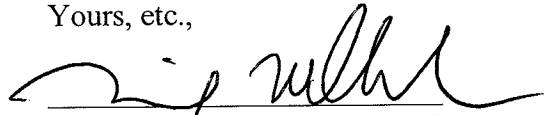
59. That by reason of the foregoing, Plaintiff **PAOLA MENDOZA** has been damaged in

an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

WHEREFORE, the Plaintiff **PAOLA MENDOZA** demands judgment against the defendants on the First Cause of Action through the Fifth Cause of Action in a sum that exceeds the jurisdictional limits of all lower trial courts of this state for each cause of action, all together with attorney's fees, punitive damages and the costs and disbursements of this action.

Dated: New York, New York
May 24, 2013

Yours, etc.,

A handwritten signature in black ink, appearing to read 'Neil Wollerstein', is written over a horizontal line.

NEIL WOLLERSTEIN, ESQ.

Attorney for Plaintiff
59 Maiden Lane, 17th Floor
New York, NY 10038
(212) 412-4705
File No.: NW-471

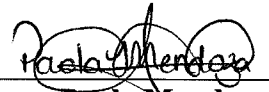
VERIFICATION

STATE OF NEW YORK }
 }
COUNTY OF NEW YORK }

SS:

I, **Paola Mendoza**, being duly sworn, say:

1. I am the plaintiff in the within action.
2. I have read the attached **Summons and Complaint** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe to be true.



Paola Mendoza

Sworn to before me this

24 day of May, 2013
NEIL WOLLERSTEIN

Notary Public, State of New York

No. 02WO6104776

Qualified in New York County

Commission Expires February 2, 2016

NOTARY PUBLIC



SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

PAOLA MENDOZA

Plaintiff,

– against –

**CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER
ALEXANDER SOSA, POLICE OFFICER JOHN DOE and POLICE OFFICER JOHN ROE**

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

NEIL WOLLERSTEIN, ESQ.

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